

House File 639

S-3165

1 Amend the amendment, S-3064, to House File 639, as amended,
2 passed, and reprinted by the House, as follows:

3 1. Page 1, before line 1 by inserting:

4 <Amend House File 639, as amended, passed, and reprinted by
5 the House, as follows:

6 1. By striking everything after the enacting clause and
7 inserting:

8 <Section 1. Section 476.33, Code 2025, is amended by adding
9 the following new subsection:

10 NEW SUBSECTION. 5. For hearings initiated under this
11 chapter, a majority of the members of the commission shall be
12 present during any live testimony. If at any point during live
13 testimony at a hearing less than a majority of the members
14 are available for any reason, the meeting shall pause until a
15 majority of the members of the commission are available.

16 Sec. 2. Section 476A.4, Code 2025, is amended by adding the
17 following new subsections:

18 NEW SUBSECTION. 6. All hearings initiated under this
19 chapter shall follow the attendance rules governing commission
20 members as provided in section 476.33, subsection 5.

21 NEW SUBSECTION. 7. After a hearing, if notice by
22 publication was properly made, an operator of an electric power
23 generation and transmission facility and a property owner may
24 enter a voluntary agreement for an interest in the property
25 without regard to whether the property owner received notice
26 by mail.

27 Sec. 3. NEW SECTION. 476A.4A **Objections.**

28 1. If an applicant is exercising the power of eminent domain
29 pursuant to this chapter, a person, including a governmental
30 entity, whose rights or interests may be affected by the
31 proposed facility may file written objections.

32 2. All objections shall be on file with the commission
33 not less than five days before the date of hearing on the
34 application. However, the commission may permit the filing
35 of the objections later than five days before the hearing, in

1 which event the applicant must be granted a reasonable time to
2 respond to the objections.

3 3. If a facility is relocated due to an objection filed
4 pursuant to this section, the utilities commission shall not
5 require an applicant to resubmit an application for a permit
6 pursuant to section 479A.3.

7 4. Notwithstanding any other provisions in this section,
8 an objection filed by a government entity that is a regulatory
9 agency or city or county zoning authority subject to the
10 requirements of section 476A.5 shall only address items not
11 within the scope of section 476A.5.

12 Sec. 4. Section 476A.6, unnumbered paragraph 1, Code 2025,
13 is amended to read as follows:

14 The commission shall render a decision on the application in
15 an expeditious manner. The commission shall render a decision
16 on an application requesting the power of eminent domain no
17 later than one year after the request for eminent domain is
18 received by the commission. A certificate shall be issued to
19 the applicant if the commission finds all of the following:

20 Sec. 5. **NEW SECTION. 476A.16 Access to lines — damages.**

21 1. Individuals or corporations operating transmission
22 lines for the facility shall have reasonable access to
23 the transmission lines for the purpose of constructing,
24 reconstructing, enlarging, repairing, or locating the poles,
25 wires, or construction and other devices used in or upon any
26 line, but shall pay to the owner of the lands and of crops on
27 the lands all damages to the lands or crops caused by entering,
28 using, and occupying the lands for those purposes. This
29 section shall not prevent the execution of an agreement between
30 the person, company, or corporation owning or operating the
31 lines and the owner of the land or crops regarding the use of
32 the land.

33 2. A claim for crop yield loss damages pursuant to this
34 section shall not be precluded from renegotiation under section
35 6B.52 on the grounds that the damages were apparent at the time

1 of settlement unless the settlement expressly releases the
2 person, company, or corporation owning or operating the lines
3 from claims for damages to the productivity of the soil. A
4 landowner that seeks damages under this section not subject to
5 a release shall notify the person, company, or corporation in
6 writing fourteen days prior to harvest in each year to assess
7 crop deficiency.

8 Sec. 6. NEW SECTION. **476A.17 Drainage tile — liability.**

9 For an applicant exercising the power of eminent domain
10 pursuant to this chapter, the operator of the electric power
11 generation and transmission facility shall be liable for
12 repairs of drainage tile installed prior to the installation of
13 the facility, when the installation, construction, operation,
14 maintenance, or repair of the facility is the proximate cause
15 of the damage to the drainage tile. The operator's liability
16 pursuant to this section shall continue for the life of the
17 electric power generation and transmission facility and shall
18 include all of the following:

- 19 1. The full replacement costs of the drainage tile,
20 including, without limitation, material, labor, and equipment.
- 21 2. The reclamation and restoration of topsoil as part of any
22 drainage tile repair.

23 Sec. 7. NEW SECTION. **476A.18 Land restoration standards.**

24 1. The commission shall adopt rules pursuant to chapter
25 17A regarding the restoration of agricultural lands following
26 construction of a facility subject to this chapter for which
27 the power of eminent domain was used. Rules adopted under this
28 section shall implement the following requirements, which shall
29 not apply within the corporate limits of a city, to any land
30 owned by the facility owner, or to any construction, activity,
31 or facility other than a facility as defined in this chapter:

- 32 a. A facility owner shall repair a damaged underground
33 drain tile as soon as practicable during construction of the
34 facility. Permanent repairs to the damaged underground drain
35 tile shall be completed as soon as practicable after the

1 initial construction of the facility is complete. The repairs
2 made to the damaged drain tile shall be of at least equal
3 quality, size, and flow capacity of the original drain tile.

4 *b.* Following the construction of the facility, the facility
5 owner shall remove from any easement area all rock larger than
6 three inches in average diameter not native to the soil of the
7 excavated land. The rock removed from the excavated land that
8 cannot be used to backfill shall be disposed of at a location
9 and in a manner agreed upon by the facility owner and the
10 landowner.

11 *c.* Upon completion of construction activities on a property,
12 the facility owner shall deep till agricultural land, including
13 right-of-way access points or roads traversed by heavy
14 construction equipment, to alleviate soil compaction. The land
15 shall be tilled at least eighteen inches deep in land used for
16 crop production and twelve inches deep in other lands unless
17 otherwise agreed to by the landowner.

18 *d.* Upon completion of the facility, the facility owner shall
19 restore the soil conservation practices and structures damaged
20 during construction of the facility to the elevation and grade
21 existing on the land prior to the construction. The soil used
22 to repair embankments intended to retain water shall be well
23 compacted. Any vegetation disturbed during construction shall
24 be reestablished, including cover crops when appropriate.

25 *e.* Following compaction of the land, agricultural land that
26 is not in row crop or small grain production at the time of
27 construction, including hay ground and land in conservation or
28 set-aside programs, shall be reseeded and a cover crop shall
29 be utilized when appropriate. Seeding for cover crops may be
30 delayed if the construction of the facility is completed too
31 late in the year for a cover crop to become established and is
32 not required if the land will be tilled in the following year.
33 The landowner may request ground cover to prevent soil erosion
34 in areas where construction on the facility is completed if the
35 season is not suitable for seeding a cover crop.

1 *f.* Unless agreed upon by the facility owner and the
2 landowner, the facility owner shall remove field entrances
3 or temporary roads built for the purpose of constructing the
4 facility upon the completion of construction and restore the
5 area to its previous use.

6 *g.* A facility owner shall use good utility practices for
7 constructing the facility in wet conditions, such as electing
8 to use matting or padding when utilizing heavy equipment. A
9 facility owner shall grade and till any rutted land to restore,
10 to the extent practicable, the original condition of the land
11 prior to the construction of the facility. If agreed upon by
12 the facility owner and the landowner, the landowner may repair
13 any damage caused by construction activities in wet conditions
14 and the facility owner shall reimburse the landowner for the
15 reasonable cost incurred to repair the damage. If a facility
16 owner utilizes heavy equipment in wetlands or mudflats, mats or
17 other measures shall be utilized to minimize soil disturbance.

18 *h.* The facility owner shall designate a point of contact for
19 inquiries or claims from an affected person. The designation
20 shall include a name, a telephone number, an email address, and
21 an address.

22 2. *a.* If a facility owner and a landowner dispute a
23 potential violation of the restoration standards provided in
24 subsection 1, the commission may appoint a qualified individual
25 to inspect the property for compliance. If the qualified
26 individual determines that there has been a violation of the
27 applicable restoration standards, the commission shall provide
28 oral notice, followed by written notice, to the facility owner
29 and the contractor operating for the facility owner and order
30 corrective action to comply with the restoration standards.
31 The facility owner shall be responsible for the costs of the
32 corrective action.

33 *b.* If the facility owner or the contractor for the facility
34 owner does not comply with a valid order for corrective
35 action issued by the commission, the commission may issue an

1 order requiring corrective action to be taken and may impose
2 civil penalties under section 478.29, which shall apply to a
3 violation of this section in lieu of section 476A.14.

4 *c.* The commission shall instruct the inspector appointed by
5 the commission regarding the content of the statutes and rules
6 and the responsibility of the inspector to require restoration
7 conforming with the standards established in subsection 1.

8 3. *a.* An applicant for a certificate shall file with the
9 application a written land restoration plan that documents how
10 the requirements and rules of subsection 1 will be met. The
11 applicant shall provide a copy of the plan to all landowners
12 of property that will be disturbed by the construction of the
13 facility.

14 *b.* Nothing in this section shall preclude the application
15 of provisions for protecting or restoring property that are
16 different than those prescribed in subsection 1, in rules
17 adopted under subsection 1, or in the land restoration plan,
18 if the alternative provisions are contained in agreements
19 independently executed by the facility owner and the landowner.
20 Independent agreements for land restoration between the
21 facility owner and the landowner shall be in writing and made
22 available to the commission upon request.

23 *c.* The commission may by waiver allow variations from the
24 requirements of subsection 1 if the facility owner requesting a
25 waiver satisfies the standards set forth in section 17A.9A and
26 if the alternative methods proposed by the facility owner would
27 restore the land to a condition as good as or better than as
28 provided for in subsection 1.

29 *d.* The commission may waive preparation of a separate
30 land restoration plan if the facility owner enters into an
31 agricultural impact mitigation plan or similar agreement
32 with the appropriate agencies of this state that satisfies
33 the requirements of subsection 1. If a mitigation plan or
34 agreement is used to fully or partially meet the requirements
35 of a land restoration plan, the statement or agreement shall

1 be filed with the commission and shall be considered to be,
2 or to be part of, the land restoration plan for purposes of
3 subsection 1.

4 4. Nothing in this section shall limit, expand, or otherwise
5 modify the rights of access and obligations for damages set
6 forth in section 476A.16.

7 5. The requirements of this section shall apply only to
8 facility construction projects commenced on or after June 1,
9 2025.

10 Sec. 8. NEW SECTION. 476A.19 Particular damage claims.

11 1. When the facility owner's interest in the landowner's
12 property was acquired by the exercise of eminent domain
13 pursuant to this chapter, compensable losses may include but
14 are not limited to any of the following:

15 a. Loss or reduced yield of crops or forage on the facility
16 right-of-way, whether caused directly by construction or from
17 disturbance of usual farm operations.

18 b. Loss or reduced yield of crops from land near the
19 facility right-of-way resulting from lack of timely access
20 to the land or other disturbance of usual farm operations,
21 including interference with irrigation or drainage.

22 c. Costs associated with the application of fertilizer,
23 lime, or organic material by the landowner to restore land
24 disturbed by construction to full productivity.

25 d. Loss of or damage to trees of commercial value that
26 occurs at the time of construction or restoration, or at the
27 time of any subsequent work by the individual, company, or
28 corporation operating the facility.

29 e. The cost of or losses in moving or relocating livestock,
30 and the loss of gain by or the death or injury of livestock
31 caused by the interruption or relocation of normal feeding.

32 f. Erosion and soil compaction on lands attributable to
33 facility construction.

34 g. Damage to farm equipment caused by striking debris or
35 other material reasonably associated with facility construction

1 while engaged in normal farming operations as defined in
2 section 480.1.

3 *h.* Damage to soil or water conservation structures caused
4 by construction, restoration, or subsequent work by the
5 individual, company, or corporation operating the facility
6 including but not limited to terraces, grassed waterways, water
7 and sediment control basins, ponds, saturated buffers, and
8 biofilters.

9 *i.* Damage to irrigation or drainage systems caused
10 by construction, restoration, or subsequent work by the
11 individual, company, or corporation operating the facility.

12 2. A claim for damages pursuant to this section shall not be
13 precluded from renegotiation under section 6B.52 on the grounds
14 that the damages were apparent at the time of settlement unless
15 the settlement expressly releases the individual, company,
16 or corporation operating the facility from the claim. The
17 landowner shall notify the individual, company, or corporation
18 in writing fourteen days prior to harvest in each year to
19 assess crop deficiency.

20 3. A landowner that incurred damage under this section
21 is eligible for compensation for damages. A landowner may
22 file a claim for damages against an individual, company, or
23 corporation operating the facility in small claims or district
24 court for a violation of this section.

25 Sec. 9. Section 478.2, subsection 2, paragraph a, Code 2025,
26 is amended to read as follows:

27 *a.* A member of the commission, the counsel of the
28 commission, or a presiding officer designated by the commission
29 shall serve as the presiding officer at each meeting, shall
30 present an agenda for such meeting, which shall include
31 a summary of the legal rights of the affected landowners,
32 and shall distribute and review the statement of individual
33 rights required under [section 6B.2A, subsection 1](#). At least
34 one member of the commission shall attend each informational
35 meeting. If at any point during the meeting no member of the

1 commission is available for any reason, the meeting shall pause
2 until at least one member of the commission returns. A formal
3 record of the meeting shall not be required.

4 Sec. 10. Section 478.2, subsection 4, Code 2025, is amended
5 to read as follows:

6 4. a. A person seeking rights under this chapter shall
7 not negotiate or purchase any easements or other interests in
8 land in any county known to be affected by the proposed project
9 prior to the informational meeting. After such meeting, if
10 notice by publication was properly made, a person seeking
11 rights under this chapter and a landowner may enter a voluntary
12 agreement for an interest in land without regard to whether
13 the landowner received notice by mail. Prior to entering a
14 voluntary agreement with a landowner who did not receive notice
15 of the informational meeting by mail, the person seeking rights
16 under this chapter shall provide such landowner copies of the
17 informational meeting materials presented by the commission,
18 the consumer advocate, and the person seeking rights under
19 this chapter. Nothing in this paragraph shall prohibit a
20 person seeking rights under this chapter from holding a meeting
21 prior to the informational meeting required by this section to
22 provide general information regarding a project to a community
23 that does not include negotiating specific terms with specific
24 landowners.

25 b. A person seeking rights under this chapter may contact
26 landowners within five miles of the project's proposed route
27 for the purpose of seeking voluntary easements under the same
28 conditions as provided in paragraph "a".

29 Sec. 11. Section 478.5, Code 2025, is amended to read as
30 follows:

31 **478.5 Notice — objections filed.**

32 1. Upon the filing of such petition, the utilities
33 commission shall cause a notice, addressed to the citizens
34 of each county through which the proposed line or lines
35 will extend, to be published in a newspaper located in each

1 such county for two consecutive weeks. Said notice shall
2 contain a general statement of the contents and purpose of the
3 petition, a general description of the lands and highways to
4 be traversed by the proposed line or lines, and shall state
5 that any objections thereto must be filed in writing with the
6 commission not later than twenty days after the date of last
7 publication of the notice. Any person, company, city, or
8 corporation whose rights may be affected, shall have the right
9 to file written objections to the proposed improvement or to
10 the granting of such franchise; such objections shall be filed
11 with the commission not later than twenty days after the date
12 of last publication and shall state the grounds therefor. The
13 commission may allow objections to be filed later in which
14 event the applicant must be given reasonable time to ~~meet~~
15 respond to such late objections.

16 2. If a route is readjusted due to an objection filed
17 pursuant to this section, the utilities commission shall not
18 require the individual, company, or corporation asking for the
19 franchise to resubmit a petition for a franchise pursuant to
20 section 478.2.

21 Sec. 12. Section 478.6, Code 2025, is amended by adding the
22 following new subsection:

23 NEW SUBSECTION. 4. The commission shall render a decision
24 on a petition requesting the power of eminent domain no later
25 than one year after the request for eminent domain is received
26 by the commission.

27 Sec. 13. Section 478.17, Code 2025, is amended to read as
28 follows:

29 **478.17 Access to lines — damages.**

30 1. Individuals or corporations operating transmission lines
31 shall have reasonable access to the transmission lines for the
32 purpose of constructing, reconstructing, enlarging, repairing,
33 or locating the poles, wires, or construction and other devices
34 used in or upon any line, but shall pay to the owner of the
35 lands and of crops on the lands all damages to the lands or

1 crops caused by entering, using, and occupying the lands for
2 those purposes. This section shall not prevent the execution
3 of an agreement between the person, ~~or~~ company, or corporation
4 owning or operating the lines and the owner of the land or
5 crops regarding the use of the land.

6 2. A claim for damages pursuant to this section due to crop
7 yield loss shall not be precluded from renegotiation under
8 section 6B.52 on the grounds that the damages were apparent at
9 the time of settlement unless the settlement expressly releases
10 the person, company, or corporation owning or operating the
11 lines from claims for damages to the productivity of the soil.
12 A landowner that seeks damages under this section not subject
13 to a release shall notify the person, company, or corporation
14 in writing fourteen days prior to harvest in each year to
15 assess crop deficiency.

16 Sec. 14. NEW SECTION. 478.17A Drainage tile — liability.

17 For an applicant exercising the power of eminent domain
18 pursuant to this chapter, an electric transmission owner
19 as defined in section 478.16 shall be liable for repairs
20 of drainage tile installed prior to the installation of
21 the electric transmission line, when the installation,
22 construction, operation, maintenance, or repair of the electric
23 transmission line is the proximate cause of the damage to
24 the drainage tile. The operator's liability pursuant to
25 this section shall continue for the life of the electric
26 transmission line and shall include all of the following:

27 1. The full replacement costs of the drainage tile,
28 including, without limitation, material, labor, and equipment.

29 2. The reclamation and restoration of topsoil as part of any
30 drainage tile repair.

31 Sec. 15. Section 478.29, subsection 1, Code 2025, is amended
32 to read as follows:

33 1. A person who violates a provision of this chapter or
34 section 476A.18 is subject to a civil penalty, which may
35 be levied by the commission, of not more than one hundred

1 dollars per violation or one thousand dollars per day of a
2 continuing violation, whichever is greater. Civil penalties
3 collected pursuant to [this section](#) shall be forwarded by the
4 chief operating officer of the commission to the treasurer
5 of state to be credited to the general fund of the state and
6 appropriated to the department of health and human services for
7 purposes of the low income home energy assistance program and
8 the weatherization assistance program.

9 Sec. 16. NEW SECTION. **478.34 Land restoration standards.**

10 1. The commission shall adopt rules pursuant to chapter
11 17A regarding the restoration of agricultural lands following
12 construction of an electric transmission line subject to
13 this chapter that is capable of operating at two hundred
14 kilovolts or greater. Rules adopted under this section shall
15 implement the following requirements, which shall not apply
16 within the corporate limits of a city, to property excluded
17 from a franchise under section 478.1, subsection 2, or to any
18 construction, activity, or facility not subject to a franchise
19 under this chapter:

20 a. An electric transmission owner shall repair a damaged
21 underground drain tile as soon as practicable during
22 construction of the electric transmission line. Permanent
23 repairs to the damaged underground drain tile shall be
24 completed as soon as practicable after the initial construction
25 of the electric transmission line is complete. The repairs
26 made to the damaged drain tile shall be of at least equal
27 quality, size, and flow capacity of the original drain tile.

28 b. Following the construction of an electric transmission
29 line, the electric transmission owner shall remove from the
30 easement area all rock larger than three inches in average
31 diameter not native to the soil of the excavated land. The
32 rock removed from the excavated land that cannot be used to
33 backfill shall be disposed of at a location and in a manner
34 agreed upon by the electric transmission owner and the
35 landowner.

1 *c.* Upon completion of construction activities on a property,
2 the electric transmission owner shall deep till agricultural
3 land, including right-of-way access points or roads traversed
4 by heavy construction equipment, to alleviate soil compaction.
5 The land shall be tilled at least eighteen inches deep in land
6 used for crop production and twelve inches deep in other lands
7 unless otherwise agreed to by the landowner.

8 *d.* Upon completion of the electric transmission line, the
9 electric transmission owner shall restore the soil conservation
10 practices and structures damaged during construction of the
11 electric transmission line to the elevation and grade existing
12 on the land prior to the construction. The soil used to
13 repair embankments intended to retain water shall be well
14 compacted. Any vegetation disturbed during construction shall
15 be reestablished, including cover crops when appropriate.

16 *e.* Following compaction of the land, agricultural land that
17 is not in row crop or small grain production at the time of
18 construction, including hay ground and land in conservation or
19 set-aside programs, shall be reseeded and a cover crop shall
20 be utilized when appropriate. Seeding for cover crops may be
21 delayed if the construction of the electric transmission line
22 is completed too late in the year for a cover crop to become
23 established and is not required if the land will be tilled in
24 the following year. The landowner may request ground cover
25 to prevent soil erosion in areas where construction on the
26 electric transmission line is completed if the season is not
27 suitable for seeding a cover crop.

28 *f.* Unless agreed upon by the electric transmission owner
29 and the landowner, the electric transmission owner shall remove
30 field entrances or temporary roads built for the purpose of
31 constructing the electric transmission line upon the completion
32 of construction and restore the area to its previous use.

33 *g.* An electric transmission owner shall use good utility
34 practices for constructing the electric transmission line in
35 wet conditions, such as electing to use matting or padding when

1 utilizing heavy equipment. An electric transmission owner
2 shall grade and till any rutted land to restore, to the extent
3 practicable, the original condition of the land prior to the
4 construction of the electric transmission line. If agreed
5 upon by the electric transmission owner and the landowner,
6 the landowner may repair any damage caused by construction
7 activities in wet conditions and the electric transmission
8 owner shall reimburse the landowner for the reasonable cost
9 incurred to repair the damage. If an electric transmission
10 owner utilizes heavy equipment in wetlands or mudflats, mats or
11 other measures shall be utilized to minimize soil disturbance.

12 *h.* The electric transmission owner shall designate a point
13 of contact for inquiries or claims from an affected person.
14 The designation shall include a name, a telephone number, an
15 email address, and an address.

16 2. *a.* If an electric transmission owner and a landowner
17 dispute a potential violation of the restoration standards
18 provided in subsection 1, the commission may appoint a
19 qualified individual to inspect the property for compliance.
20 If the qualified individual determines that there has been
21 a violation of the applicable restoration standards, the
22 commission shall provide oral notice, followed by written
23 notice, to the electric transmission owner and the contractor
24 operating for the electric transmission owner and order
25 corrective action to comply with the restoration standards.
26 The electric transmission owner shall be responsible for the
27 costs of the corrective action.

28 *b.* If the electric transmission owner or the contractor
29 for the electric transmission owner does not comply with a
30 valid order for corrective action issued by the commission, the
31 commission may issue an order requiring corrective action to be
32 taken and may impose civil penalties under section 478.29.

33 *c.* The commission shall instruct the inspector appointed by
34 the commission regarding the content of the statutes and rules
35 and the responsibility of the inspector to require restoration

1 conforming with the standards established in subsection 1.

2 3. *a.* A petitioner for a franchise for an electric
3 transmission line shall file with the petition a written land
4 restoration plan that documents how the requirements and rules
5 of subsection 1 will be met. The petitioner shall provide a
6 copy of the plan to all landowners of property that will be
7 disturbed by the construction of the electric transmission
8 line.

9 *b.* Nothing in this section shall preclude the application
10 of provisions for protecting or restoring property that are
11 different than those prescribed in subsection 1, in rules
12 adopted under subsection 1, or in the land restoration plan,
13 if the alternative provisions are contained in agreements
14 independently executed by the electric transmission owner and
15 the landowner. Independent agreements for land restoration
16 between the electric transmission owner and the landowner shall
17 be in writing and shall be made available to the commission
18 upon request.

19 *c.* The commission may by waiver allow variations from the
20 requirements of subsection 1 if the electric transmission
21 owner requesting a waiver satisfies the standards set forth
22 in section 17A.9A and if the alternative methods proposed
23 by the electric transmission owner would restore the land
24 to a condition as good as or better than as provided for in
25 subsection 1.

26 *d.* The commission may waive preparation of a separate land
27 restoration plan if the electric transmission owner enters into
28 an agricultural impact mitigation plan or similar agreement
29 with the appropriate agencies of this state that satisfies
30 the requirements of subsection 1. If a mitigation plan or
31 agreement is used to fully or partially meet the requirements
32 of a land restoration plan, the statement or agreement shall
33 be filed with the commission and shall be considered to be,
34 or to be part of, the land restoration plan for purposes of
35 subsection 1.

1 4. Nothing in this section shall limit, expand, or otherwise
2 modify the rights of access and obligations for damages set
3 forth in section 478.17.

4 5. The requirements of this section shall apply only to
5 electric transmission line construction projects commenced on
6 or after June 1, 2025.

7 Sec. 17. NEW SECTION. **478.35 Particular damage claims.**

8 1. When the electric transmission line owner's interest
9 in the landowner's property was acquired by the exercise of
10 eminent domain pursuant to this chapter, compensable losses may
11 include but are not limited to any of the following:

12 *a.* Loss or reduced yield of crops or forage on the electric
13 transmission line right-of-way, whether caused directly by
14 construction or from disturbance of usual farm operations.

15 *b.* Loss or reduced yield of crops from land near the
16 electric transmission line right-of-way resulting from lack of
17 timely access to the land or other disturbance of usual farm
18 operations, including interference with irrigation or drainage.

19 *c.* Costs associated with the application of fertilizer,
20 lime, or organic material by the landowner to restore land
21 disturbed by construction to full productivity.

22 *d.* Loss of or damage to trees of commercial value that
23 occurs at the time of construction or restoration, or at the
24 time of any subsequent work by the individual, company, or
25 corporation operating the transmission line.

26 *e.* The cost of or losses in moving or relocating livestock,
27 and the loss of gain by or the death or injury of livestock
28 caused by the interruption or relocation of normal feeding.

29 *f.* Erosion and soil compaction on lands attributable to
30 electric transmission line construction.

31 *g.* Damage to farm equipment caused by striking debris or
32 other material reasonably associated with electric transmission
33 line construction while engaged in normal farming operations as
34 defined in section 480.1.

35 *h.* Damage to soil or water conservation structures caused

1 by construction, restoration, or subsequent work by the
2 individual, company, or corporation operating the transmission
3 line including but not limited to terraces, grassed waterways,
4 water and sediment control basins, ponds, saturated buffers,
5 and biofilters.

6 *i.* Damage to irrigation or drainage systems caused
7 by construction, restoration, or subsequent work by the
8 individual, company, or corporation operating the transmission
9 line.

10 2. A claim for damages pursuant to this section shall not be
11 precluded from renegotiation under section 6B.52 on the grounds
12 that the damages were apparent at the time of settlement unless
13 the settlement expressly releases the individual, company,
14 or corporation operating the transmission line from the
15 claim. The landowner shall notify the individual, company, or
16 corporation in writing fourteen days prior to harvest in each
17 year to assess crop deficiency. The landowner may submit a
18 global positioning yield map to demonstrate such crop loss, but
19 the information contained in such map shall not be dispositive
20 as to the extent or causation of the damages, which may be
21 contested by the individual, company, or corporation operating
22 the transmission line.

23 3. A landowner that incurred damage under this section
24 is eligible for compensation for damages. A landowner may
25 file a claim for damages against an individual, company, or
26 corporation operating the transmission line in small claims
27 or district court for a violation of this section or pursue
28 remedies under section 478.36.

29 Sec. 18. NEW SECTION. 478.36 Hearing — commission member
30 attendance.

31 All hearings initiated under this chapter shall follow the
32 attendance rules governing commission members as provided in
33 section 476.33, subsection 5.

34 Sec. 19. Section 479.5, subsection 3, paragraph a, Code
35 2025, is amended to read as follows:

1 a. A pipeline company shall hold informational meetings
2 in each county in which real property or property rights will
3 be affected at least thirty days prior to filing the petition
4 for a new pipeline. A member of the commission or a person
5 designated by the commission shall serve as the presiding
6 officer at each meeting, shall present an agenda for the
7 meeting, which shall include a summary of the legal rights
8 of the affected landowners, and shall distribute and review
9 the statement of individual rights required under section
10 6B.2A. At least one member of the commission shall attend each
11 informational meeting. If at any point during the meeting
12 no member of the commission is available for any reason, the
13 meeting shall pause until at least one member of the commission
14 returns. A formal record of the meeting shall not be required.

15 Sec. 20. Section 479.5, subsection 5, Code 2025, is amended
16 to read as follows:

17 5. a. A ~~pipeline company~~ person seeking rights under this
18 chapter shall not negotiate or purchase any easements or other
19 interests in land in any county known to be affected by the
20 proposed project prior to the informational meeting. After
21 such meeting, if notice by publication was properly made, a
22 person seeking rights under this chapter and a landowner may
23 enter a voluntary agreement for an interest in land without
24 regard to whether the landowner received notice by mail. Prior
25 to entering a voluntary agreement with a landowner who did not
26 receive notice of the informational meeting by mail, the person
27 seeking rights under this chapter shall provide such landowner
28 copies of the informational meeting materials presented by
29 the commission, the consumer advocate, and the person seeking
30 rights under this chapter. Nothing in this paragraph shall
31 prohibit a person seeking rights under this chapter from
32 holding a meeting prior to the informational meeting required
33 by this section to provide general information regarding a
34 project to a community that does not include negotiating
35 specific terms with specific landowners.

1 b. A person seeking rights under this chapter may contact
2 landowners within five miles of the project's proposed route
3 for the purpose of seeking voluntary easements under the same
4 conditions as provided in paragraph "a".

5 Sec. 21. Section 479.9, Code 2025, is amended to read as
6 follows:

7 **479.9 Objections.**

8 1. Any person, corporation, company, or city whose rights
9 or interests may be affected by a proposed pipeline or lines
10 or gas storage facilities may file written objections to the
11 proposed pipeline or lines or gas storage facilities or to the
12 granting of a permit.

13 2. If a pipeline or line route is readjusted or a gas
14 storage facility is relocated due to an objection filed
15 pursuant to this section, the utilities commission shall not
16 require a pipeline company to resubmit an application for a
17 permit pursuant to section 479.5.

18 Sec. 22. Section 479.12, Code 2025, is amended to read as
19 follows:

20 **479.12 Final order — condition.**

21 The commission may grant a permit in whole or in part upon
22 terms, conditions, and restrictions as to safety requirements
23 and as to location and route as determined by it to be just
24 and proper. Before a permit is granted to a pipeline company,
25 the commission, after a public hearing as provided in this
26 chapter, shall determine whether the services proposed to be
27 rendered will promote the public convenience and necessity, and
28 an affirmative finding to that effect is a condition precedent
29 to the granting of a permit. The commission shall render a
30 decision on a petition requesting the power of eminent domain
31 no later than one year after the request for eminent domain is
32 received by the commission.

33 Sec. 23. Section 479.25, Code 2025, is amended to read as
34 follows:

35 **479.25 Damages.**

1 1. A pipeline company operating a pipeline or a gas
2 storage area shall have reasonable access to the pipeline or
3 gas storage area for the purpose of constructing, operating,
4 maintaining, or locating pipes, pumps, pressure apparatus or
5 other stations, wells, devices, or equipment used in or upon
6 the pipeline or gas storage area; shall pay the owner of the
7 land for the right of entry and the owner of crops for all
8 damages caused by entering, using, or occupying the land; and
9 shall pay to the owner all damages caused by the completion
10 of construction of the pipeline due to wash or erosion of the
11 soil at or along the location of the pipeline and due to the
12 settling of the soil along and above the pipeline. However,
13 this section shall not prevent the execution of an agreement
14 between the pipeline company and the owner of land or crops
15 with reference to the use of the land.

16 2. A claim for damages pursuant to this section due to crop
17 yield loss shall not be precluded from renegotiation under
18 section 6B.52 on the grounds that the damages were apparent
19 at the time of settlement unless the settlement expressly
20 releases the pipeline company from claims for damages to the
21 productivity of the soil. A landowner that seeks damages under
22 this section not subject to a release shall notify the pipeline
23 company in writing fourteen days prior to harvest in each year
24 to assess crop deficiency.

25 Sec. 24. Section 479.29, Code 2025, is amended by adding the
26 following new subsection:

27 NEW SUBSECTION. 1A. For a pipeline company exercising
28 the power of eminent domain pursuant to this chapter, the
29 pipeline company shall be liable for repairs of drain tile
30 installed prior to the installation of the pipeline, when the
31 installation, construction, operation, maintenance, or repair
32 of the pipeline is the proximate cause of the damage to the
33 drainage tile. The pipeline company's liability pursuant to
34 this section shall continue for the life of the pipeline and
35 shall include all of the following:

1 *a.* The full replacement costs of the drainage tile,
2 including, without limitation, material, labor, and equipment.

3 *b.* The reclamation and restoration of topsoil as part of any
4 drainage tile repair.

5 Sec. 25. Section 479.29, subsection 5, Code 2025, is amended
6 to read as follows:

7 5. If the pipeline company or its contractor does not
8 comply with the requirements of *this section*, with the
9 land restoration plan, or with an independent agreement on
10 land restoration or line location executed in accordance
11 with *subsection 10*, the county board of supervisors or a
12 landowner may petition the commission for an order requiring
13 corrective action to be taken. In addition, the county board
14 of supervisors or a landowner may file a complaint with the
15 commission seeking imposition of civil penalties pursuant to
16 section 479.31. A landowner may supply a copy of the complaint
17 to the county board of supervisors where the complaint
18 originated.

19 Sec. 26. Section 479.45, subsection 1, paragraphs b and f,
20 Code 2025, are amended to read as follows:

21 *b.* Loss or reduced yield of crops or yield from land near
22 the pipeline right-of-way resulting from lack of timely access
23 to the land or other disturbance of usual farm operations,
24 including interference with irrigation or drainage.

25 *f.* Erosion and soil compaction on lands attributable to
26 pipeline construction.

27 Sec. 27. Section 479.45, subsection 1, Code 2025, is amended
28 by adding the following new paragraphs:

29 NEW PARAGRAPH. *h.* Damage to soil or water conservation
30 structures caused by construction, restoration, or subsequent
31 work by the pipeline company including but not limited to
32 terraces, grassed waterways, water and sediment control basins,
33 ponds, saturated buffers, and biofilters.

34 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems
35 caused by construction, restoration, or subsequent work by the

1 pipeline company.

2 Sec. 28. Section 479.45, subsection 2, Code 2025, is amended
3 to read as follows:

4 2. A claim for ~~damage for future crop deficiency within~~
5 ~~the easement strip~~ damages incurred under this section shall
6 not be precluded from renegotiation under section 6B.52 on
7 the grounds that it was apparent at the time of settlement
8 unless the settlement expressly releases the pipeline company
9 from claims for damage to the productivity of the soil. The A
10 landowner that seeks damages under this section not subject to
11 a release shall notify the pipeline company in writing fourteen
12 days prior to harvest in each year to assess crop deficiency.
13 The landowner may submit a global positioning yield map to
14 demonstrate such crop loss, but the information contained in
15 such map shall not be dispositive as to the extent or causation
16 of the damages, which may be contested by the pipeline company.

17 Sec. 29. Section 479.45, Code 2025, is amended by adding the
18 following new subsection:

19 NEW SUBSECTION. 3. A landowner that incurred damage under
20 this section is eligible for compensation for damages. A
21 landowner may file a claim for damages against a pipeline
22 company in small claims or district court for a violation of
23 this section or pursue remedies under section 479.46.

24 Sec. 30. Section 479.46, subsection 7, Code 2025, is amended
25 to read as follows:

26 7. As used in this section, “*damages*” means compensation for
27 damages to the land, crops, and other personal property caused
28 by the construction activity of installing a pipeline and its
29 attendant structures or underground storage facility, or a
30 compensable loss as described in section 479.45, subsection 1,
31 but does not include compensation for a property interest, and
32 “*landowner*” includes a farm tenant.

33 Sec. 31. NEW SECTION. **479.50 Hearing — commission member**
34 **attendance.**

35 All hearings initiated under this chapter shall follow the

1 attendance rules governing commission members as provided in
2 section 476.33, subsection 5.

3 Sec. 32. Section 479A.11, Code 2025, is amended to read as
4 follows:

5 **479A.11 Damages.**

6 1. A pipeline company operating pipelines or underground
7 storage shall be given reasonable access to the pipelines and
8 storage areas for the purpose of constructing, operating,
9 maintaining, or locating their pipes, pumps, pressure
10 apparatus, or other stations, wells, devices, or equipment used
11 in or upon a pipeline or storage area, but shall pay the owner
12 of the lands for the right of entry and the owner of crops on
13 the land all damages caused by entering, using, or occupying
14 the lands for these purposes; and shall pay to the owner of the
15 lands, after the completion of construction of the pipeline or
16 storage, all damages caused by settling of the soil along and
17 above the pipeline, and wash or erosion of the soil along the
18 pipeline due to the construction of the pipeline. However,
19 this section does not prevent the execution of an agreement
20 with other terms between the pipeline company and the owner of
21 the land or crops with reference to their use.

22 2. A claim for crop yield loss damages pursuant to this
23 section shall not be precluded from renegotiation under section
24 6B.52 on the grounds that the damages were apparent at the time
25 of settlement unless the settlement expressly releases the
26 pipeline company from claims for damages to the productivity of
27 the soil. A landowner that seeks damages under this section
28 not subject to a release shall notify the pipeline company in
29 writing fourteen days prior to harvest in each year to assess
30 crop deficiency.

31 Sec. 33. Section 479B.4, subsection 3, Code 2025, is amended
32 to read as follows:

33 3. The pipeline company shall hold informational meetings
34 in each county in which real property or property rights will
35 be affected at least thirty days prior to filing the petition

1 for a new pipeline. A member of the commission, or a person
2 designated by the commission, shall serve as the presiding
3 officer at each meeting and present an agenda for the meeting,
4 which shall include a summary of the legal rights of the
5 affected landowners. At least one member of the commission
6 shall attend each informational meeting. If at any point
7 during the meeting no member of the commission is available for
8 any reason, the meeting shall pause until at least one member
9 of the commission returns. No formal record of the meeting
10 shall be required. The meeting shall be held at a location
11 reasonably accessible to all persons who may be affected by
12 granting the permit.

13 Sec. 34. Section 479B.4, subsection 6, Code 2025, is amended
14 to read as follows:

15 6. a. A ~~pipeline company~~ person seeking rights under
16 this chapter shall not negotiate or purchase an easement or
17 other interest in land in a county known to be affected by the
18 proposed project prior to the informational meeting. After
19 such meeting, if notice by publication was properly made, a
20 person seeking rights under this chapter and a landowner may
21 enter a voluntary agreement for an interest in land without
22 regard to whether the landowner received notice by mail. Prior
23 to entering a voluntary agreement with a landowner who did not
24 receive notice of the informational meeting by mail, the person
25 seeking rights under this chapter shall provide such landowner
26 copies of the informational meeting materials presented by
27 the commission, the consumer advocate, and the person seeking
28 rights under this chapter. Nothing in this paragraph shall
29 prohibit a person seeking rights under this chapter from
30 holding a meeting prior to the informational meeting required
31 by this section to provide general information regarding a
32 project to a community that does not include negotiating
33 specific terms with specific landowners.

34 b. A person seeking rights under this chapter may contact
35 landowners within five miles of the project's proposed route

1 for the purpose of seeking voluntary easements under the same
2 conditions as provided in paragraph "a".

3 Sec. 35. Section 479B.7, Code 2025, is amended by adding the
4 following new subsection:

5 NEW SUBSECTION. 3. If a pipeline route is readjusted due
6 to an objection filed pursuant to this section, the utilities
7 commission shall not require a pipeline company to resubmit an
8 application for a permit pursuant to section 479B.4.

9 Sec. 36. Section 479B.9, Code 2025, is amended to read as
10 follows:

11 **479B.9 Final order — condition.**

12 The commission may grant a permit in whole or in part upon
13 terms, conditions, and restrictions as to location and route
14 as it determines to be just and proper. A permit shall not be
15 granted to a pipeline company unless the commission determines
16 that the proposed services will promote the public convenience
17 and necessity. The commission shall render a decision on a
18 petition requesting the power of eminent domain no later than
19 one year after the request for eminent domain is received by
20 the commission.

21 Sec. 37. Section 479B.16, Code 2025, is amended by adding
22 the following new subsection:

23 NEW SUBSECTION. 4. Notwithstanding subsection 1, a
24 pipeline company granted a permit for a pipeline to carry
25 liquefied carbon dioxide shall not be authorized to use
26 eminent domain except under at least one of the following
27 circumstances:

28 a. The pipeline was permitted by the commission prior to the
29 effective date of this Act.

30 b. The pipeline has the sole purpose of attaching to another
31 pipeline, a shipper, customer, or off-taker or delivery point
32 to a pipeline for which eminent domain is authorized under
33 paragraph "a".

34 Sec. 38. Section 479B.17, Code 2025, is amended to read as
35 follows:

1 **479B.17 Damages.**

2 1. A pipeline company operating a pipeline or an
3 underground storage facility shall have reasonable access to
4 the pipeline or underground storage facility for the purpose
5 of constructing, operating, maintaining, or locating pipes,
6 pumps, pressure apparatus, or other stations, wells, devices,
7 or equipment used in or upon the pipeline or underground
8 storage facility. A pipeline company shall pay the owner of
9 the land for the right of entry and the owner of crops for all
10 damages caused by entering, using, or occupying the lands and
11 shall pay to the owner all damages caused by the completion
12 of construction of the pipeline due to wash or erosion of the
13 soil at or along the location of the pipeline and due to the
14 settling of the soil along and above the pipeline. However,
15 this section does not prevent the execution of an agreement
16 between the pipeline company and the owner of the land or crops
17 with reference to the use of the land.

18 2. A claim for crop yield loss damages pursuant to this
19 section shall not be precluded from renegotiation under section
20 6B.52 on the grounds that the damages were apparent at the time
21 of settlement unless the settlement expressly releases the
22 pipeline company from claims for damages to the productivity of
23 the soil. A landowner that seeks damages under this section
24 not subject to a release shall notify the pipeline company in
25 writing fourteen days prior to harvest in each year to assess
26 crop deficiency.

27 Sec. 39. Section 479B.20, Code 2025, is amended by adding
28 the following new subsection:

29 NEW SUBSECTION. 1A. For a pipeline company exercising
30 the power of eminent domain pursuant to this chapter, the
31 pipeline company shall be liable for repairs of drainage tile
32 installed prior to the installation of the pipeline, when the
33 installation, construction, operation, maintenance, or repair
34 of the pipeline is the proximate cause of the damage to the
35 drainage tile. The pipeline company's liability pursuant to

1 this section shall continue for the life of the pipeline and
2 shall include all of the following:

3 a. The full replacement costs of the drainage tile,
4 including, without limitation, material, labor, and equipment.

5 b. The reclamation and restoration of topsoil as part of any
6 drainage tile repair.

7 Sec. 40. Section 479B.20, subsection 5, Code 2025, is
8 amended to read as follows:

9 5. If the pipeline company or its contractor does not
10 comply with the requirements of [this section](#), with the land
11 restoration plan or line location, or with an independent
12 agreement on land restoration executed in accordance with
13 subsection 10, the county board of supervisors or a landowner
14 may petition the commission for an order requiring corrective
15 action to be taken. In addition, the county board of
16 supervisors or a landowner may file a complaint with the
17 commission seeking imposition of civil penalties under section
18 479B.21. A landowner may supply a copy of the complaint to the
19 county board of supervisors where the complaint originated.

20 Sec. 41. Section 479B.29, subsection 1, paragraphs b and f,
21 Code 2025, are amended to read as follows:

22 b. Loss or reduced yield of crops or yield from land near
23 the pipeline right-of-way resulting from lack of timely access
24 to the land or other disturbance of usual farm operations,
25 including interference with irrigation or drainage.

26 f. Erosion and soil compaction on lands attributable to
27 pipeline construction.

28 Sec. 42. Section 479B.29, subsection 1, Code 2025, is
29 amended by adding the following new paragraphs:

30 NEW PARAGRAPH. h. Damage to soil or water conservation
31 structures caused by construction, restoration, or subsequent
32 work by the pipeline company including but not limited to
33 terraces, grassed waterways, water and sediment control basins,
34 ponds, saturated buffers, and biofilters.

35 NEW PARAGRAPH. i. Damage to irrigation or drainage systems

1 caused by construction, restoration, or subsequent work by the
2 pipeline company.

3 Sec. 43. Section 479B.29, subsection 2, Code 2025, is
4 amended to read as follows:

5 2. A claim for ~~damage for future crop deficiency within~~
6 ~~the easement strip~~ damages incurred under this section shall
7 not be precluded from renegotiation under [section 6B.52](#) on
8 the grounds that it was apparent at the time of settlement
9 unless the settlement expressly releases the pipeline company
10 from claims for damage to the productivity of the soil. ~~The A~~
11 landowner that seeks damages under this section not subject to
12 a release shall notify the pipeline company in writing fourteen
13 days prior to harvest in each year to assess crop deficiency.
14 The landowner may submit a global positioning yield map to
15 demonstrate such crop loss, but the information contained in
16 such map shall not be dispositive as to the extent or causation
17 of the damages, which may be contested by the pipeline company.

18 Sec. 44. Section 479B.29, Code 2025, is amended by adding
19 the following new subsection:

20 NEW SUBSECTION. 3. A landowner that incurred damage under
21 this section is eligible for compensation for damages. A
22 landowner may file a claim for damages against a pipeline
23 company in small claims or district court for a violation of
24 this section or pursue remedies under section 479B.30.

25 Sec. 45. Section 479B.30, subsection 7, Code 2025, is
26 amended to read as follows:

27 7. As used in [this section](#), “*damages*” means compensation for
28 damages to the land, crops, and other personal property caused
29 by the construction of a pipeline and its attendant structures
30 or underground storage facility, or a compensable loss as
31 described in section 479B.29, subsection 1, but does not
32 include compensation for a property interest, and “*landowner*”
33 includes a farm tenant.

34 Sec. 46. NEW SECTION. **479B.34 Hearing — commission member**
35 **attendance.**

1 All hearings initiated under this chapter shall follow the
2 attendance rules governing commission members as provided in
3 section 476.33, subsection 5.

4 Sec. 47. RETROACTIVE APPLICABILITY. The section of this Act
5 amending section 479B.4, subsection 6, applies retroactively to
6 voluntary agreements between a pipeline company and a landowner
7 entered into on or after January 1, 2024.>

8 2. Title page, by striking lines 1 through 8 and
9 inserting <An Act relating to public utilities, including
10 utility commission member attendance at hearings and
11 informational meetings, utility commission decision timelines,
12 land restoration standards, claims for damages, easement
13 negotiations, and the exercise of eminent domain for the
14 construction of hazardous liquid pipelines, making civil
15 penalties applicable, and including retroactive applicability
16 provisions.>>

17 2. By striking page 1, line 1, through page 34, line 26.

MIKE BOUSSELOT